

25NWCV02088 25NWCV02088

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25NWCV02088 Hearing Date: August 21, 2026 Dept: P

RAUL HERNANDEZ v. ARMANDO SOLIS, ET AL.

CASE NO.: 25NWCV02088

HEARING: 08/21/2026 @ 9:30 AM

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TENTATIVE ORDER

Counsel Alan W. Forsley, Esq. - FLP Law Group LLP's

motion to be relieved as counsel for Defendant Federacion Nacional E Internancional

de Nayaritas en U.S.A. is GRANTED. This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.

Moving party to give notice.

Counsel Alan W. Forsley, Esq. - FLP Law Group LLP (Counsel)

moves to be relieved as counsel for Defendant Federacion Nacional E Internancional

de Nayaritas en U.S.A. (Defendant).

Background

On June 10, 2025, Plaintiff Raul Hernandez (Plaintiff) filed this assault action against Defendants Armando Solis; La Noria Entertainment, Inc. (La Noria Entertainment); Pico Rivera Sports Arena; City of Pico Rivera; and Does 1 through 100. On July 29, 2025, Plaintiff dismissed City of Pico Rivera. On September 16, 2025, Plaintiff filed the operative first amended

complaint (FAC). This action arises out of injuries Plaintiff sustained on August 3, 2024, while attending an event put on by Defendants La Nora Entertainment and Pico Rivera Sports Arena at Pico Rivera Sports Arena located at 11003 Sports Arena Dr, Pico Rivera, CA 90601 (Subject Location) after Soli stabbed Plaintiff with a knife. (FAC, ¶¶ 10-12.) The complaint asserts four causes of action: (1) Assault, (2) Battery, (3) Negligence, and (4) Premises Liability.

On November 3, 2025, La Nora Entertainment filed a cross-complaint against Rose 1 through 50 for (1) indemnity, (2) contribution and apportionment, and (3) declaratory relief.

On February 19, 2026, Plaintiff filed three Amendments to Complaint adding Federacion Nacional E Internancional de Nayaritas en U.S.A. as Doe 1, Leonardo & Iris Lopez Family Trust as Doe 12, and Leonardo M. Lopez as Doe 11.

On April 17, 2026, La Nora Entertainment, Leonard M. Lopez, and Leonardo & Iris Lopez Family Trust filed a first amended cross-complaint for (1) indemnity, (2) contribution and apportionment, and (3) declaratory relief.

Legal Standard

“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: ¶ 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; ¶ 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

California Rules of Court, rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil

Procedure section 284, subd. (2): (1) a notice of motion and motion directed to the client (Form MC-051); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subd. (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subd. (1) (Form MC-052); (3) a proof of service

evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Form MC-053). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

Discussion

Counsel moves to be relieved as counsel for Defendant.

Here, in compliance with California Rules of Court, rule 3.1362, Counsel submits a notice of motion and motion on Form MC-051 directed to Defendant. Counsel also submits a declaration on Form MC-052 demonstrating good cause to be relieved as counsel for Defendant. Specifically, Counsel states that there has been a breakdown of the attorney-client relationship due to nonpayment and a failure to adhere to the obligations under the retainer agreement. Counsel provides a proposed order on Form MC-053 and proof of service of each document to the parties in this action. Therefore, the Court finds that Counsel has fully complied with the requirements under California Rules of Court, rule 3.1362.

Accordingly, Counsel's motion to be relieved as counsel for Defendant is GRANTED. This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.